THE HONORABLE DAVID G. ESTUDILLO

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF WASHINGTON
AT TACOMA

RUTHANNA SHIRLEY, et al., Plaintiffs, v. WASHINGTON STATE DEPARTMENT OF FISH AND WILDLIFE, et al., Defendants.	**CASE NO. 3:23-cv-05077-DGE** **STIPULATED MOTION AND [PROPOSED] ORDER FOR LEAVE TO AMEND PLEADINGS AND TO CONTINUE THE TRIAL DATE** NOTE ON MOTION CALENDAR: May 2, 2024

Plaintiffs Ruthanna Shirley, *et al.*, hereby submit this Stipulated Motion for Leave to File an Amended Complaint and to Continue the Trial Date. A proposed Amended Complaint with highlighted additions is attached to this Motion.

The purpose of this Amended Complaint is to add five additional Plaintiffs who, at the time of the original filing of the Complaint, had not filed a tort claim with the Washington Office of Risk Management 60 days prior to the filing of the Complaint initiating this action. The Parties agree that it would be most efficient for these new Plaintiffs to be added to this action rather than file their own separate action or actions. In agreeing to add these additional Plaintiffs, the Parties agree that the Defendants do not concede the proposed Plaintiffs' claims have merit and that the

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Defendants do not waive any defenses that would be available to Defendants if the proposed Plaintiffs were to file their own separate legal actions.

The Parties likewise agree that, in order to accommodate the addition of these new Plaintiffs, it is necessary to continue the trial date set for December 2, 2024. To accommodate the Parties' schedules and conflicting trials, the Parties jointly ask that the trial date be continued to June 9, 2025. The Parties agree to expedite an exchange of discovery and initial disclosures for these five Plaintiffs and will continue to engage in the discovery and other pretrial activities necessary to prepare all 18 Plaintiffs' claims for trial. The Parties also believe a continuance will facilitate additional settlement discussions, which may ultimately conserve significant resources of both the Parties and the Court.

Rule 15 advises the court that "leave shall be freely given when justice so requires." Fed. R. Civ. P. 15(a). That policy is "to be applied with extreme liberality." *Eminence Capital, LLC v. Aspeon, Inc.,* 316 F.3d 1048, 1051 (9th Cir. 2003). "In the absence of apparent or declared reason – such as undue delay, bad faith or dilatory motive on the part of the movant, repeated failure to cure deficiencies by amendments previously allowed, undue prejudice to the opposing party by virtue of allowance of the amendment, futility of amendment, etc., – the leave sought to amend should, as the rules require, be 'freely given.'" *Id.* at 1052 (quoting *Foman v. Davis,* 371 U.S. 178, 182, 83 S. Ct. 227 (1962)); *see also Allen v. City of Beverly Hills,* 911 F.2d 367, 373 (9th Cir. 1990) (citing *Foman* factors, as well as "previous amendment"); *Hurn v. Re. Fund Trust of the Plumbing, Heating & Piping Indus. of S. Cal.,* 648 F.2d 1252, 1254 (9th Cir. 1981).

"Not all factors merit equal weight…it is the consideration of prejudice to the opposing party that carries the greatest weight." *Eminence*, 316 F.3d at 1052 (citing *DCD Programs, Ltd. v. Leighton,* 833 F.2d 183, 185 (9th Cir. 1987)). "Prejudice is the 'touchstone of the inquiry under Rule 15(a)." *Id.* (citing *Lone Star Ladies Inv. Club. v. Schlotzsky's Inc.,* 238 F.3d 363, 368 (5th Cir. 2001)); *Howey v. United States,* 481 F.2d 1187, 1190 (9th Cir. 1973) (stating that "the crucial factor is the resulting prejudice to the opposing party"); *cf. DCD Programs,* 833 F.2d at 186-87 (noting that party opposing amendment "bears the burden of showing prejudice").

Here, Defendants do not claim prejudice from the proposed amendment as long as the trial date is continued to permit the Parties to incorporate the new Plaintiffs. If the Court does not grant the requested continuance, the Defendants do not consent to the proposed amendment. The granting of this Motion will also save judicial resources, as the additional five Plaintiffs would otherwise seek to initiate an entirely new action, creating additional time and expense for this Court and the Parties involved.

Counsel for Plaintiffs will coordinate with Defendants a date for speedy submission of initial disclosures and discovery on behalf of the five additional Plaintiffs.

For the reasons discussed above, the Parties ask that the Court permit the filing of the proposed amended complaint and continue the trial date to accommodate the new Plaintiffs. A proposed Amended Complaint, with Exhibits A-F incorporated here by reference, is attached.

Dated this 2nd day of May 2024.

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"I certify that this memorandum contains 690 words, incompliance with the Local Civil Rules."

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ORDER

The Court orders that the Stipulated Motion for Leave to Amend Pleadings and to Continue the Trial Date is granted. The Plaintiffs may file their amended complaint within 14 days of entry of this Order. The trial date is continued to June 9, 2025, and all pretrial deadlines shall be adjusted accordingly. A new scheduling order will be issued.

DATED this _____ day of May 2024.

_____
DAVID G. ESTUDILLO
UNITED STATES DISTRICT JUDGE

Presented by:

s/ Nathan J. Arnold
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CERTIFICATE OF SERVICE

I hereby certify that on May 2, 2024, I electronically filed the foregoing document with the clerk of the court using the CM/ECF system which will send notification of such filing to those registered with CM/ECF.

DATED this 2nd day of May 2024, at Orting, Washington.

s/ Victoria Dunwoody
Victoria Dunwoody
Legal Assistant